

(35)

Tentative Ruling

Re: ***Patterson v. Soler et al.***
Superior Court Case No. 25CECG02748

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Motion for Good Faith Settlement Determination

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/19/26
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Hernandez v. Vizzolini et al.***
Superior Court Case No. 24CECG02586

Hearing Date: May 20, 2026 (Dept. 502)

Motion: By Defendant Victor Alvarez to Set Aside Default

Tentative Ruling:

To deny. (Code Civ. Proc., § 473, subd. (b).)

Explanation:

Defendant Victor Daniel Alvarez dba All About Hot Tubs ("Defendant") moves to set aside default, entered against it on December 11, 2024, pursuant to Code of Civil Procedure section 473, subdivision (b). Defendant argues that he is entitled to relief under the discretionary provision of the statute because his failure to file a response to the complaint was the result of mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to relieve a party or the party's legal representative "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.

The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. However, that discretion can be exercised only if the moving party establishes a proper ground for relief, by the proper procedure, and within the statutory time limits. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) "Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) Once six months have elapsed after entry of default, the court no longer has jurisdiction over it. (*Thompson v. Vallembois* (1963) 216 Cal.App.2d 21, 24.) Even where a party timely files a motion to set aside a default judgement, if more than six months have elapsed since the entry of default, relief from default would not be available. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Here, default was entered by the clerk on December 11, 2024, against Defendant. Defendant filed the instant motion on March 12, 2026. Defendant served and filed the motion to set aside default approximately one year and three months after default was entered against them. Consequentially, the motion is untimely under Code of Civil Procedure section 473, subdivision (b), and Defendant cannot be granted relief from default. The motion is denied.

